privileging of statism, Nehru's arguments mirroring those put forward by his detractors today – as much as it shows Mookerjee's vision of India to be the antithesis to that of his ideological successors.

RIGHT AT THE outset, in 1946, when India's Constituent Assembly took up the arduous task of framing a constitution for the new nation, the idea that Fundamental Rights and individual liberty underpinned the entire enterprise had enjoyed broad support. The Constitution was meant to be a charter of freedom – the intent was affirmed from the moment the new chairman, Rajendra Prasad, declared the assembly's resolve to: '[P]lace before the world a model of a constitution that will satisfy all our people, all groups, all communities, all religions inhabiting this vast land, and which will ensure to everyone freedom of action, freedom of thought, freedom of belief and freedom of worship.'[14]

These provisions for civil liberties and their enforcement were meant to be the dividing line between a repressive colonial past and a liberal new present,[15] the culmination of the efforts of several generations of nationalists and fulfilment of the Congress pledge to achieve freedom for the Indian people. Part III of the Constitution – the chapter on Fundamental Rights – attested to the determination of the new republic to jettison its colonial baggage. It was thus very apt for B.R. Ambedkar, one of the new constitution's key architects, to describe it as the 'heart and soul' of the whole Constitution,[16] or for it to be hailed on 26 January 1950 as 'the most elaborate declaration of human rights yet framed by any state'.[17] The inauguration of the Constitution was, in the words of the noted lawyer C.P. Ramaswamy Iyer, the beginning of 'the most far-reaching and significant experiment in human history'.[18]

By March 1951, however, the experiment was floundering, and the charter of freedom had become a stumbling block. Armed with Part III of the new Constitution – guaranteeing the Fundamental Rights of the citizens – zamindars, businessmen, editors, activists and concerned citizens had